

Standard Terms of Insurance (STI)

Helvetia private rental guarantee insurance

September 2025 edition

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Customer information

1 Contracting party

Your contracting party is:

Helvetia Swiss
Insurance Company Ltd
Dufourstrasse 40
9001 St. Gallen

In the course of concluding and executing the contract, Helvetia Swiss Insurance Company Ltd is entitled to act on behalf of the other contracting parties (e.g. concluding and terminating contracts, collecting debts, demanding refunds).

2 Applicable law, basis of the contract

This contract is governed by Swiss law. The contractual basis comprises the application, the customer information, the Standard Terms of Insurance and, further special conditions or supplementary provisions, and also the policy. The Swiss Federal Law on Insurance Contracts also applies.

If the policyholder's place of residence/registered office is the Principality of Liechtenstein, the law of Liechtenstein applies together with the provisions of the Liechtenstein Insurance Policies Act (Versicherungsvertragsgesetz, VersVG).

3 Insurance against loss or fixed sum insurance

Your insurance is, as a general rule, an insurance against loss; fixed sum insurance will be expressly designated as such in the contract documents (e.g. application or policy).

4 Obligations on concluding the contract

As an applicant, the policyholder is obliged under Article 6 of the Insurance Policies Act to provide complete and correct answers to all questions in the application (e.g. date of birth, previous damages/losses). If the policyholder or insured person provides an incomplete or incorrect answer to a written question or a question in any other text form on conclusion of the contract, Helvetia is entitled to terminate the contract within four weeks of becoming aware of the breach of the duty to notify. If the contract is terminated in this manner, the obligation to pay benefits also ceases for any loss already suffered if the occurrence or scope of such loss was influenced by the incorrectly or incompletely disclosed risk. If benefits have already been paid for such losses, repayment may be demanded.

5 Right of revocation

The policyholder may revoke, in writing or any other text form, their application to conclude the contract or their declaration of acceptance of such contract. The period of cancellation is 14 days and commences as soon as the policyholder has applied for or accepted the contract. This period is considered to have been met if the policyholder has notified Helvetia of the revocation or submitted their notice of revocation to the postal service on or by the last day of the period of revocation. The right of revocation is excluded in the case of group personal insurance, provisional confirmation of cover, agreements with a term of less than one month.

6 Conclusion of the contract / start of insurance coverage

After the insurance application has been received by the Helvetia head office in St. Gallen, Helvetia will notify the policyholder as soon as possible whether it accepts the application. As soon as the policyholder has received notice of acceptance, the insurance is deemed concluded. The policyholder shall be provided with his policy as proof of the conclusion of the insurance.

Insurance cover starts on the commencement date given in the policy, unless a confirmation of cover in text form was issued for an earlier date.

7 Term of insurance and termination of insurance contract

The first insurance year begins at the start of the contract and lasts until the due date of the next annual premium specified in the policy. The contract is extended by one year at a time.

The contract can be terminated in accordance with Art. 4 Para. 2 of the following provisions on private rental guarantee insurance.

8 Period of validity of the insurance contract

The period of validity of the insurance coverage is subject to the agreements contained in the application, the policy and the Standard Terms of Insurance (STI).

Provisions regarding private rental guarantee insurance

1 Scope of insurance

1. Within the meaning of Art. 496 of the Swiss Code of Obligations (CO), Helvetia undertakes to act as joint and several guarantor for the tenant resp. policyholder vis-à-vis the landlord/property management (hereinafter referred to as surety recipient). The joint and several surety covers all claims, interest and costs incurred by the landlord as a result of the tenancy agreement and for which the landlord could have recourse to a surety from the tenant resp. policyholder in accordance with Art. 257e CO, the framework tenancy agreement for French-speaking Switzerland and the framework tenancy agreement for the Canton of Vaud.
2. The obligations on the part of Helvetia are excluded or limited in the following cases:
 - a. Helvetia does not provide a surety for tenancy agreements between a tenant and a subtenant;
 - b. if several certificates guarantee the same tenancy agreement, only the most recent certificate issued by Helvetia shall apply;
 - c. the agreed surety sum represents the upper compensation limit for all claims arising during the term of the surety;
 - d. only claims arising after the commencement of insurance are covered.

2 Rental guarantee certificate

Upon acceptance of the application for the surety and receipt of the first premium, Helvetia will issue an original certificate and send it to the surety recipient. If payment is made by credit card or TWINT, the tenant and landlord will also be sent (a copy) of a legally signed electronic guarantee confirmation by e-mail immediately after the successful completion, whereby Helvetia is liable from the start of the insurance and is obliged to issue the guarantee certificate. If the rental guarantee is taken out via Flatfox, the original certificate will be sent directly after conclusion of the policy.

3 Co-tenants

1. When the certificate is drawn up in the name of several tenants, the latter are deemed to be jointly and severally liable so that each of them is irrevocably assumed to have given the others permission to act in their name and for their account and each tenant may likewise validly instruct Helvetia in any matter concerning the tenancy agreement and the rental guarantee (release of the rental guarantee, movements of funds, etc.).
2. Helvetia may have recourse to any one or other of the tenants when exercising its (Helvetia's) right of redress and namely for the entire amount owed (Art. 7 below) in accordance with the rules of joint and several liability.

4 Start and end of private rental guarantee issued by Helvetia

1. The Helvetia rental guarantee insurance enters into force on the commencement date entered on the certificate resp. on the date of the guarantee confirmation.
2. The Helvetia rental guarantee insurance ends under one of the following conditions:
 - a. termination of the Helvetia private rental guarantee insurance with return of the surety certificate or notice of confirmation of cancellation by the surety recipient;
 - b. written relinquishment of the surety by the surety recipient;
 - c. if the landlord has not asserted any claims against the tenant in the course of debt enforcement, bankruptcy or legal proceedings within one year after the end of the lease contract (analogous to Art. 257e, (3) OR);
 - d. if the tenant provides proof that the tenancy agreement has been ineffective for over a year and the landlord cannot prove that he instigated enforcement proceedings or brought an action against the tenant within one year after clearance of the premises;
 - e. if Helvetia has paid the surety recipient the amount claimed under the terms of the surety certificate;
 - f. if the Helvetia private rental guarantee insurance is replaced by a new rental guarantee or bank guarantee, Helvetia is released from all associated obligations (including written consent from the surety recipient).
3. If the rental agreement is transferred to a new tenant resp. policyholder, the rental guarantee issued by Helvetia expires.

5 Payment of the guarantee sum to the surety recipient

1. In accordance with Art. 257e para. 3 CO, the framework tenancy agreement for French-speaking Switzerland and the framework tenancy agreement for the Canton of Vaud, Helvetia undertakes to pay to the surety recipient the amount owed by the tenant resp. policyholder within the limits of the maximum amount entered on the certificate, provided one of the following conditions is satisfied and the certificate is submitted with justified claims, including supporting records:
 - a. the written consent of the tenant resp. policyholder regarding the amount owed, and their signatures;
 - b. declaration by the tenant resp. policyholder that he caused the damage to the rental property;
 - c. a legally binding payment order, a legally binding judgement or an official order for the opening of legal proceedings for rent and service charge receivables, with which the tenant resp. policyholder was ordered to pay a sum of money connected with the lease contract;
 - d. a legally binding payment order, a legally binding judgement or a legally binding official order for the opening of legal proceedings concerning the damage to the rental property, with which the tenant resp. policyholder was ordered.

6 Right of redress and subrogation

1. Helvetia may have recourse to the tenant resp. policyholder for all expenses (benefits incl. costs and interest) which it (Helvetia) incurs under its surety obligation. Helvetia is immediately and fully subrogated to the rights of the surety recipient and can, by means of a payment order, demand reimbursement by the tenant resp. policyholder of all amounts paid by it (Helvetia) to the surety recipient in performance of the contract.
2. Where Helvetia has rendered services the tenant resp. policyholder expressly waives the right to file pleas and objections against claims asserted by Helvetia.

7 Bankruptcy of policyholder

If bankruptcy proceedings are instituted against the policyholder, the contract remains in force, and the receivers are required to fulfil the contractual obligations.

8 Premiums

1. Helvetia charges 4 % (excl. stamp duty) of the surety sum as premium. Premiums are payable annually in advance on the date specified in the policy.
2. If the policyholders do not comply with their payment obligation, the policyholders will be requested in writing policyholders expense to make payment within 14 days.
3. Contrary to Art. 20 of the Federal Law on Insurance Contracts, if it subsequently becomes necessary to take legal action to collect the outstanding premiums, this does not result in a suspension of the obligation to compensate the surety recipient. If legal action is taken by Helvetia, administrative costs of CHF 100 will be added to the premium owed.
4. Upon premature cancellation or termination of the contract, the premium will be owed only for the time up to the cancellation of the contract, unless cancellation is in the first insurance year. In this instance, the entire premium for the first insurance year is owed.
5. However, the entire premium for the current insurance period is owed if Helvetia makes the surety payment in full.
6. The tenant resp. policyholder is required to pay the premium for as long as the Helvetia private rental guarantee insurance issued by Helvetia has not been ended in accordance with the provisions of Article 4 above. It is the responsibility of the tenant resp. policyholder to satisfy any necessary formalities vis-à-vis the surety recipient to ensure that Helvetia receives confirmation at the end of the Helvetia rental guarantee insurance.

9 Liability

Helvetia and its employees assume no liability for any loss resulting from the performance, non-performance or inadequate performance of the present agreement, subject to gross negligence or fraud within the meaning of Art. 100 para. 1 CO. Liability on the part of Helvetia and its employees is expressly excluded for any loss resulting from the information that it provides to the landlord or to a third party about the tenant resp. policyholder.

10 Sanctions clause

This insurance contract does not provide insurance coverage or other benefits from the insurer if this would contravene economic, financial or trading sanctions imposed by the EU, USA, United Kingdom or UN or Swiss laws.

11 Final provisions

1. All notifications and communications from the tenant resp. policyholder should be sent to the competent general agency or to the registered place of business of Helvetia in Switzerland.
2. The guarantee is subject to Swiss law. The place of jurisdiction is St. Gallen or at the location of the rental property.
3. Helvetia is entitled to obtain information concerning the payment history of the tenant resp. policyholder from authorities and information services.
4. Insofar as this is required for verification of the application and performance of the contract, the tenant resp. policyholder expressly releases previous insurers contacted for information, debt collection and bankruptcy offices as well as other authorities from official or professional confidentiality and secrecy obligations. The tenant resp. policyholder authorizes them to provide Helvetia with information.
5. In all other respects, the provisions of the Federal Law on Insurance Contracts as well as the provisions of the CO apply.

Information on entering into insurance contracts under Liechtenstein law online

Issued in September 2025

1 Introduction

Pursuant to our duties to inform under the Insurance Sales Act (Versicherungsvertriebsgesetz) of the Principality of Liechtenstein of 5 December 2017 (hereinafter "Vers-VertG"), we are providing with you with the following information on entering into insurance contracts online.

2 Extrajudicial conciliation board

The extrajudicial Conciliation Board is in charge of resolving disputes between customers and distributors of insurance products regarding services rendered, according to Art. 75 of the above-cited VersVertG in conjunction with the Ordinance on the Financial Services Conciliation Board (Finanzdienstleistungs-Schlichtungsstellen-Verordnung, FSV). For further information about the Conciliation Board, see: <http://www.schlichtungsstelle.li/>

3 Possibility of complaining

Complaints related to the insurance contract, insurance coverage or customer service by Helvetia should be addressed by letter to Helvetia Swiss Insurance Company Ltd, Dufourstrasse 40, P.O. Box, 9001 St. Gallen.

The relevant supervisory authority is the Financial Market Authority Liechtenstein, Landstrasse 109, P.O. Box 279, 9490 Vaduz. Complaints about the insurer may be sent by the individual policyholder by post or else by e-mail to info@fma-li.li.

4 Remuneration

The Helvetia employees who are entrusted with the formation and processing of your insurance contract are paid wages according to Helvetia's General Terms of Employment (Allgemeine Anstellungsbedingungen (AAB)). Helvetia employees do not receive any additional remuneration related to the formation of this insurance contract.

